

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #9	CCRB Case #: 202101092	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/11/2020 6:45 PM	Location of Incident: In front of 134 Division Street and the 7th Precinct stationhouse.	Precinct: 07	18 Mo. SOL 8/11/2021	EO SOL 3/28/2022	
Date/Time CV Reported Thu, 02/18/2021 10:49 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 02/18/2021 10:49 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Cesar Mejia	03952	963648	007 PCT
2. POM Gabriel Perezponce	21361	963187	007 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sean Robinson	04836	961183	007 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Cesar Mejia	Force: In front of 134 Division Street in Manhattan, Police Officer Cesar Mejia used physical force against § 87(2)(b)	
B.POM Cesar Mejia	Abuse: In front of 134 Division Street in Manhattan, Police Officer Cesar Mejia forcibly removed § 87(2)(b) to the hospital.	
C.POM Gabriel Perezponce	Abuse: In front of 134 Division Street in Manhattan, Police Officer Gabriel Perez-Ponce forcibly removed § 87(2)(b) to the hospital.	
D.POM Cesar Mejia	Force: In front of 134 Division Street in Manhattan, Police Officer Cesar Mejia restricted § 87(2)(b)'s breathing.	
E.POM Gabriel Perezponce	Force: In front of 134 Division Street in Manhattan, Police Officer Gabriel Perez-Ponce restricted § 87(2)(b)'s breathing.	
F.POM Cesar Mejia	Discourtesy: At the 7th Precinct stationhouse, Police Officer Cesar Mejia spoke discourteously to § 87(2)(b)	

Case Summary

On February 18, 2021, § 87(2)(b) filed this complaint with the CCRB on behalf of himself and § 87(2)(b).

On February 11, 2020, at approximately 6:45 p.m., while on Division Street in Manhattan, Police Officer Cesar Mejia and Police Officer Gabriel Perez-Ponce, of the 7th Precinct, were approached by a civilian who told them that § 87(2)(b) was down the street on Division swinging a long stick and that she feared for her safety. Upon the officers' approach of § 87(2)(b) he attempted to flee, and PO Mejia chased § 87(2)(b) and took him to the ground in front of 134 Division Street (**Allegation A: Force - Miscellaneous, § 87(2)(g)**). PO Mejia and PO Perez then called for an ambulance to the location so § 87(2)(b) may be removed to a hospital for evaluation (**Allegation B: Abuse of Authority - Miscellaneous, § 87(2)(g)**) (**Allegation C: Abuse of Authority - § 87(2)(g)**).

As PO Mejia and PO Ponce waited for the ambulance, § 87(2)(b) was on the ground lying flat on his chest and he stated that he could not breathe (**Allegation D: Force - Miscellaneous, § 87(2)(g)**) (**Allegation E: Force - § 87(2)(g)**). Ultimately, the ambulance arrived on scene and § 87(2)(b) was placed inside and removed to Bellevue hospital.

While observing the incident in question, § 87(2)(b) was arrested. After being taken to the 7th Precinct stationhouse and placed in a holding cell, PO Mejia allegedly approached § 87(2)(b) and said, Oh, you were trying to be a man, huh? Now look, you're in a fucking cell" (**Allegation F: Discourtesy- Miscellaneous, § 87(2)(g)**).

§ 87(2)(b) was arrested and issued a Desk Appearance ticket for acting disorderly by "refus[ing] to disperse" (**Board Review 01**). Body-worn camera footage (**Board Review 02**) and civilian cell phone video footage (**Board Review 03**) were obtained in relation to this incident.

Findings and Recommendations

Allegation (A) Force: In front of 134 Division Street in Manhattan, Police Officer Cesar Mejia used physical force against § 87(2)(b)

Allegation (B) Abuse of Authority: In front of 134 Division Street in Manhattan, Police Officer Cesar Mejia forcibly removed § 87(2)(b) to the hospital.

Allegation (C) Abuse of Authority: In front of 134 Division Street in Manhattan, Police Officer Gabriel Perez-Ponce forcibly removed § 87(2)(b) to the hospital.

During his CCRB statement, § 87(2)(b) stated that he was walking on Division Street in Manhattan when he saw § 87(2)(b) who was shirtless, seemingly trying to get away from officers (**Board Review 04**). He saw PO Mejia and PO Perez pursuing § 87(2)(b) and PO Mejia "jump" on § 87(2)(b) from the back and take him to the ground.

When interviewed by the investigation, § 87(2)(b) stated that he did not have a recollection of the incident in question (**Board Review 05**). He added that he has a mental disorder that results in erratic behavior, and he has been sent to the hospital on various occasions as a result.

PO Mejia stated that hours prior to the incident under investigation, at 3:45 p.m., he and PO Perez responded to a 911 call at § 87(2)(b), a youth drug program located at § 87(2)(b) in Manhattan (**Board Review 06**). Upon arriving and speaking with a female program director, PO Mejia was informed that § 87(2)(b) was expressing suicidal ideations. The officers located § 87(2)(b) within blocks of the location and spoke to him; after which, he agreed to have an ambulance take him to the hospital so that he could be evaluated and treated.

PO Mejia added that at 6: 46 p.m., that same day, he and PO Perez were positioned at a fixed post, at the intersection of Division Street and Ludlow Street in Manhattan, when an unidentified female approached their marked vehicle and told them that she feared for her safety because there was a person shirtless and swinging a broomstick (**Board Review 06**). The officers exited their marked vehicle and walked toward a person, § 87(2)(b) who was not wearing a shirt and was

swinging a broomstick. As they approached § 87(2)(b) he dropped the stick and began to walk away, ultimately, he began running. Given the information he had at the time, PO Mejia felt that he needed to investigate the matter further, so he pursued § 87(2)(b). When PO Mejia got close enough, he grabbed § 87(2)(b) at the shoulders and went to the ground, causing § 87(2)(b) to also go to the ground. He and PO Perez then detained § 87(2)(b) and got him into handcuffs. PO Mejia did not realize that the person was § 87(2)(b) the same person from earlier, until he was detained on the ground.

The investigation obtained two AIDED reports prepared by PO Mejia on February 11, 2020, in relation to § 87(2)(b) going to a hospital, the first at 3:44 p.m. and the second at 6:45 p.m. In AID-§ 87(2)(b), the first report, PO Mejia notes that he was called to § 87(2)(b) and was informed that § 87(2)(b) expressed he was feeling suicidal and wanted to throw himself in traffic (**Board Review 17**). He was also informed that § 87(2)(b) was a patient at § 87(2)(b) for 10 years and had expressed numerous suicidal ideations.

In the second report, AID § 87(2)(b) PO Mejia notes that he was informed by a bystander that they observed § 87(2)(b) shirtless and swinging a long stick, causing alarm for her safety (**Board Review 18**). The bystander pointed § 87(2)(b) out to the officers.

PO Perez § 87(2)(g) He stated that the unidentified female who complained about § 87(2)(b) stated that § 87(2)(b) was swinging a pipe and that she feared for bystanders' safety due to § 87(2)(b)'s actions. He also ran behind § 87(2)(b) but PO Mejia was the one who caught up to him.

§ 87(2)(b), § 87(2)(g)

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Per NYPD DAO, PO Mejia resigned from the NYPD on September 20, 2021 (**Board Review 13**).

NYPD Patrol Guide 221-13 (**Board Review 08**). A person who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to themselves or others is an emotionally disturbed person. If the emotionally disturbed person's action constitutes an immediate threat, then officers must take reasonable measures to terminate the behavior. The officers then must request an ambulance and have the person removed to the hospital.

§ 87(2)(b), § 87(2)(g)

Allegation (D) Abuse of Authority: In front of 134 Division Street in Manhattan, Police Officer Cesar Mejia restricted § 87(2)(b)'s breathing.

Allegation (E) Abuse of Authority: In front of 134 Division Street in Manhattan, Police Officer Gabriel Perez-Ponce restricted § 87(2)(b)'s breathing.

It is undisputed that after the officers took § 87(2)(b) to the ground, he was rear handcuffed face down. It is also undisputed that almost immediately upon taking § 87(2)(b) to the ground, a crowd of bystanders gathered and began to watch and record the incident.

The investigation obtained PO Mejia's BWC video from the incident in question (**Board Review 09**). PO Mejia seemingly takes § 87(2)(b) to the ground at 30 seconds. At the 1:46

minute-mark, § 87(2)(b) says that he has asthma, there is a knee in his back, and that he cannot breathe. At 2:50, bystanders can be seen standing less than a sidewalk-width away from the interaction. At 3:50, Police Officer Sean Robinson and Police Officer Michael Brenner arrive on scene and are heard instructing the civilian bystanders to back away. They then form a perimeter around the interaction of PO Mejia, PO Perez, and § 87(2)(b).

PO Mejia's BWC further shows § 87(2)(b) on the ground against his chest rear handcuffed at 7:55. At 8:00, an unidentified voice says, "Sit this guy up." Four minutes after back up arrives and a perimeter is formed, PO Mejia and PO Perez stand § 87(2)(b) up and then instruct him to sit. He sits on the ground.

During his CCRB interview, PO Mejia stated that after the officers took § 87(2)(b) to the ground and rear handcuffed him while he was on his chest, he complained that he could not breathe (**Board Review 06**). Because he said so, the officers ultimately stood him up off the ground. PO Mejia did not recall how much time passed between the time § 87(2)(b) said he could not breathe and the time the officers stood him up because he could not breathe.

During his CCRB interview, PO Perez stated that as the crowd of bystanders formed, § 87(2)(b) stated that he could not breathe (**Board Review 07**). When asked, PO Perez stated that he could not recall if the officers acted to address § 87(2)(b) expressing that he could not breathe. When asked whether he and PO Mejia were supposed to reposition § 87(2)(b) after he said he could not breathe, PO Perez said he did not know.

Per NYPD DAO, PO Mejia resigned from the NYPD on September 20, 2021 (**Board Review 13**).

Patrol Guide Procedure 221-02 (Board Review 10). When a member of service must control an uncooperative subject, they may rear-cuff them. They must also position the subject to promote free breathing as soon as safety permits by sitting the person up or turning them to their side. Officers must also observe the subject closely for signs of difficulty breathing.

§ 87(2)(b), § 87(2)(g)

Allegation (F) Abuse of Authority: At the 7th Precinct stationhouse, Police Officer Cesar Mejia spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that within the first hour of being in the holding cell at the 7th Precinct stationhouse, PO Mejia approached the cell area and said, "Oh, you were trying to be a man, huh? Now look, you're in a fucking cell." § 87(2)(b) did not identify any witnesses to the allegation in question.

During his CCRB statement, PO Mejia stated that he did not recall whether he interacted with § 87(2)(b) at the stationhouse. He stated that he never said, "Oh, you were trying to be a man, huh? Now look, you're in a fucking cell" to § 87(2)(b).

Per NYPD DAO, PO Mejia resigned from the NYPD on September 20, 2021 (**Board Review 13**).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two other and a victim in one other CCRB complaint(s) and has been named as a victim in three other CCRB allegations (**Board Review 11**).
 - § 87(2)(b)

§ 87(2)(b)

- § 87(2)(b) has been party to two other and a victim in one other CCRB complaint(s) and has been named as a victim in four other CCRB allegations (**Board Review 12**).
 - § 87(2)(b)
- As of September 20, 2021, PO Mejia has resigned from the NYPD.
- PO Perez has been a member of service for four years and has been a subject in four other CCRB complaints and six other allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming mental anguish, emotional distress and suffering, psychological injuries, violation of his constitutional rights, and other injuries and seeking \$1,000,000 as redress (**Board Review 14**). There is no 50H hearing scheduled.
- According to the Office of Court Administration (OCA), § 87(2)(b) has no history of convictions in New York City (**Board Review 15**).
- According to the Office of Court Administration (OCA), between October 14, 2010 and December 7, 2021, § 87(2)(b) was § 87(2)(b), assault (once), § 87(2)(b), resisting arrest (once), unauthorized sale of transport service (once), criminal trespass (once), menacing (once), disorderly conduct (once), criminal mischief (once), and § 87(2)(b). OCA does not list any other convictions (**Board Review 16**).

Squad: 09

Investigator:	<u>Wassim Abedrabbo</u> Signature	<u>SI Wassim Abedrabbo</u> Print Title & Name	<u>1/20/2022</u> Date
Squad Leader:	<u>Monique West</u> Signature	<u>IM Monique West</u> Print Title & Name	<u>1/20/2022</u> Date
Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date